

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Allison Farmer	Team: Team # 6	CCRB Case #: 200303079	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/29/2003 5:30 PM	Location of Incident: East 233rd St & Baychester Road	18 Mo. SOL 10/29/2004	Precinct: 47
Date/Time CV Reported Wed, 04/30/2003 11:32 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/30/2003 11:32 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rodriguez	21191	926015	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Abuse: Police Officer Robert Rodriguez refused to provide his name and shield number to § 87(2)(b)	A . Complainant Uncooperative

Synopsis

On April 29, 2003 at approximately 5:30 PM, § 87(2)(b) was driving eastbound on East 233rd Street in the Bronx. When § 87(2)(b) pulled up to the stop sign at the intersection of East 233rd Street and Baychester Road, he noticed a police car travelling southbound on Baychester Road. After stopping at the stop sign, § 87(2)(b) said that he inched forward and started turning right onto Baychester Road. As § 87(2)(b) attempted to pull in front of the police vehicle, the driver of the vehicle, who § 87(2)(b) identified as Police Officer Rodriguez, pointed at him and signaled for him to pull over. When asked how he identified Officer Rodriguez as the subject officer, § 87(2)(b) said that Officer Rodriguez was the officer who prepared and issued him the tickets and his name was written on the tickets. Officer Rodriguez approached his window and immediately stated, "Don't even put your seatbelt on." § 87(2)(b) said that his seatbelt was on when Officer Rodriguez said this to him. Officer Rodriguez proceeded to ask § 87(2)(b) for his license and registration. § 87(2)(b) noted that Officer Rodriguez's partner was standing next him but did not speak to him at all. He described Officer Rodriguez's partner as a black male. § 87(2)(b) provided his license and registration to Officer Rodriguez and he and his partner returned to their vehicle.

After waiting in his vehicle for about a half an hour, § 87(2)(b) rolled down his window and waived to the officers to come over to his vehicle. One of the officers yelled out, "What," and § 87(2)(b) replied, "Are you guys going to give me a ticket or are you guys going to keep me here all day." § 87(2)(b) noted that the officers were just sitting in their vehicle eating. Officer Rodriguez's partner shouted, "Where are you going," and § 87(2)(b) responded, "I'm going to get my wife." Officer Rodriguez's partner then stated, "Are you in a rush?" § 87(2)(b) said, "No, but if you're going to keep me around all evening, I would like to go." § 87(2)(b) said that the officers got really mad when he said this to them. Officer Rodriguez then approached § 87(2)(b)'s window and handed him four tickets. Officer Rodriguez issued § 87(2)(b) tickets § 87(2)(b).

§ 87(2)(b) said that his insurance had expired so he understood why he received that ticket. When Officer Rodriguez presented § 87(2)(b) with the tickets, § 87(2)(b) immediately asked him why he was being issued four tickets. Officer Rodriguez responded, "Don't talk to me, talk to the judge." § 87(2)(b) then asked Officer Rodriguez for his badge number but he refused to give it to him. He again stated, "Don't talk to me. Talk to the judge." (Allegation A) § 87(2)(b) faxed the investigator a copy of his tickets. According to the tickets, Officer Rodriguez, Tax #926015, was the officer responsible for issuing § 87(2)(b) the tickets. While § 87(2)(b) thought that Officer Rodriguez was from the 49th Precinct, a search of the officer database revealed that the officer with Tax #926015 is Police Officer Robert Rodriguez of the 47th Precinct.

The investigator explained the mediation process and investigation process to § 87(2)(b). When asked what process appealed to him, § 87(2)(b) said that he would like to sit down face to face with Officer Rodriguez and ask him why he would not explain the tickets and why he refused to give him his badge number when he asked for it. § 87(2)(b) agreed that the mediation process would be the best process for his complaint. Because Officer Rodriguez refused to participate in the mediation program, § 87(2)(b)'s complaint was returned to the investigation division on July 29, 2003. On July 29, 2003, the investigator contacted § 87(2)(b) on his cell phone and left a message with § 87(2)(b)'s brother, § 87(2)(b), informing him that his case had been returned to the investigation division and that he needed to schedule a formal interview at the CCRB. After hearing no response, the investigator telephoned § 87(2)(b) leaving a message on his voicemail and also sent a contact letter to § 87(2)(b)'s home address. On August 5, 2003 the investigator left a third message on § 87(2)(b)'s voicemail. A second contact letter was sent to § 87(2)(b) on August 12, 2003. On August 12, 2003, the investigator left a final message on § 87(2)(b)'s voicemail warning him that if he did not contact the investigator in the next week his case would be closed. Because § 87(2)(b) has failed to respond to the investigator's numerous contact attempts, it is recommended that this case be closed as complainant uncooperative.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: